

Superior Court of Washington, County of King

State of Washington,
Plaintiff,

vs.

Alexandria Lee Montgomery Example 1991-04-17
Defendant DOB

No. SYNTH-20-1-004321-1

Blake Motion to Vacate Drug Possession
Conviction and Refund Paid LFOs Amounts
(MT)

Blake Motion to Vacate Drug Possession Conviction and Refund Paid LFO Amounts

1. This matter comes before the court on:

- ☒ Defendant's motion.
- ☐ State's motion.
- ☐ Motion of the Court, in the interest of justice.

2. Motion and Relief Requested:

The movant requests the court vacate unconstitutionally void *Blake* conviction/s and order a refund of legal financial obligations (LFOs) paid on the unconstitutional conviction/s, as well as waive any balance remaining on LFOs resulting from the unconstitutional conviction/s. The movant requests the court further direct the clerk to revoke or remove any such LFO assigned to a private collection agency, and stop any collection action resulting solely from the void convictions. This motion is based on *State v. Blake*, 197 Wn.2d 170, 481 P.3d 521 (2021), *State v. A.L.R.H.*, 20 Wn. App. 2d 384, 500 P.3d 188 (2021), *Nelson v. Colorado*, 581 U.S. 128, 137 S. Ct. 1249 (2017), CrR 7.8 (b)(4), GR 15(b)(8) and the case record and files.

In addition to a vacate of conviction/s, waiver of LFOs, and refund of paid LFOs, the movant requests this Court further:

- a) Order the clerk to update or vacate defendant's criminal record;
- b) Dismiss the information with prejudice as to the refiling of any charges alleged in the original or amended information or indictment in this case if no counts remain; if counts remain, dismiss the charge/s in the information, as originally filed or amended, with prejudice as to the counts/crimes vacated under *State v. Blake*;
- c) Release the defendant from all penalties and disabilities resulting from any conviction under this case and those offense/s shall not be included in the defendant's criminal history for purposes of determining a sentence in any subsequent conviction;
- d) Determine any remaining term of community custody, if applicable;
- e) Quash outstanding arrest warrants in this matter if there are no other convictions on the judgment and sentence;
- f) Direct the Clerk of the Court notify the Department of Licensing to reinstate the defendant's privilege to drive, if the defendant was under 21 years old at the time of conviction and this *Blake* conviction was the sole basis for suspending the defendant's privilege to drive pursuant to RCW 69.50.420(2).
- g) Order the clerk to transmit notice of the vacate order to Washington State Patrol and local law enforcement agency to update their records to reflect the vacate;
- h) Order the Washington State Patrol to transmit notice of the vacate order to the Federal Bureau of Investigation;
- i) Order the clerk to forward a copy of the vacate order to the Department of Corrections;

3. Basis

a) Conviction:

The defendant's underlying conviction for simple drug possession was based on one or more of the following:

- a) RCW 69.50.4013(1), for convictions on or after July 1, 2004;

- b) RCW 69.50.4014, for convictions on or after July 1, 2004;
- c) RCW 69.50.401(c), for convictions between 1971 and March 20, 1979;
- d) RCW 69.50.401(d), for convictions between 1971 and June 30, 2004;
- e) RCW 69.50.401(e), for convictions between March 21, 1979 and June 30, 2004;
- f) An inchoate offense for one of the above statutes.

Additional information:

See attached conviction and payment-history schedule.

b) LFO refund (check one):

☒ A refund may be due. The Clerk should determine whether LFOs were paid on the unconstitutional conviction/s and calculate an LFO refund amount.

☐ Attached is a true and correct copy of the **LFO Accounting Summary** obtained from the Superior Court Clerk's office. (Optional)

4. Reservation of Rights

Defendant reserves the right to bring a motion to seek additional or different relief from that requested here, including but not limited to a motion for resentencing or a motion for a refund for third-party costs associated with the unconstitutional conviction.

5. Hearing

Defendant understands Defendant may need to take further action to have this matter considered by a court.

If filed by Prosecuting Attorney, Defendant, or Defense Attorney:

Prosecuting Attorney WSBA No.

Defendant or Defense Attorney WSBA No.

Print Name

Alexandria Lee Montgomery Example

Print Name

Defendant's Mailing Address, if known:

9876 Synthetic Long Residence Avenue

Seattle, WA 98101

Phone: 206-555-0142

Email: participant@example.test

Attach a copy of the LFO Accounting Summary (if available)

Blake motion: supplied facts

Defendant and cause

Alexandria Lee Montgomery Example; DOB 1991-04-17; Superior Court, King; cause SYNTH-20-1-004321-1.

Count 1: Requested Blake relief

Possession of controlled substance; RCW/ordinance 69.50.4013(1); offense date 2018-03-14; sentencing date 2019-04-12.

Count 2: Non-Blake count remains

Theft in the Third Degree; RCW/ordinance 9A.56.050; offense date 2018-03-14; sentencing date 2019-04-12.

Participant-supplied record and payment information

Release date: 2019-04-12. Supervision ended: 2020-04-12. New convictions reported: No. Participant reports LFO payments 825.00 and outstanding balance 150.00. The court or clerk must verify payment history and calculate any refund and interest.

Payment history obtained: Yes. Court/WSP records reviewed: Yes. Separate treatment-program question: No. This answer does not determine Blake relief. Local law-enforcement agency: Seattle Police Department.

Superior Court of Washington, County of King

State of Washington,
Plaintiff

vs.

Alexandria Lee Montgomery Example 1991-04-17
Defendant DOB

No. SYNTH-20-1-004321-1

Order on Blake Motion to Vacate Specific Drug
Possession Conviction(s) and Refund Paid
LFO Amounts—Counts Remain

[] Granted (ORV CDC)

[] Denied

Clerk's Action Required: 4, 10, 11, 12, 15, 16

**Order on Blake Motion to Vacate Specific Drug Possession
Conviction(s) on Judgment and Sentence and Refund Paid
LFO Amounts—Counts Remain**

1. Basis

This matter comes before the court on: ☐ Defendant's motion ☐ State's motion, based on *State v. Blake*, 197 Wn.2d 170 (2021) and *State v. A.L.R.H.*, 20 Wn. App. 2d 384 (2021) to vacate simple drug possession conviction/s under RCW 69.50.4013 and RCW 69.50.4014 or their predecessor statutes or convictions for inchoate offenses under RCW 69.50.4013 and RCW 69.50.4014 or their predecessor statutes, and to refund legal financial obligations (LFOs). Nothing in this order precludes the defendant from bringing a motion to seek additional or different relief including but not limited to a refund for third-party costs.

The court considered the case record and the pleadings submitted on the matter.

☐ **No hearing.** The court decided this motion on the pleadings.

☐ **Hearing.** The court heard argument at a hearing.

2. Notice

- ☐ The defendant had actual notice of the motion for entry of this order.
- ☐ This order was entered with no actual notice to the defendant. Entry of this order shall not be taken as an indication that the defendant has received any affirmative, actual notice of the relief provided by this order.

3. Findings & Conclusions

In *State v. Blake*, 197 Wn.2d 170 (2021), the Supreme Court of Washington held that RCW 69.50.4013 is unconstitutionally void. *State v. A.L.R.H.*, 20 Wn. App. 2d 384 (2021) extended that holding to convictions based under RCW 69.50.4014. As a result, convictions based on RCW 69.50.4013 or RCW 69.50.4014 or their predecessor statutes, or convictions for inchoate offenses under RCW 69.50.4013 and RCW 69.50.4014 or their predecessor statutes, are unconstitutionally void and must be vacated. LFOs and accrued interest paid pursuant to such convictions must be refunded, including fees and interest that private collections agencies imposed. *Nelson v. Colorado*, 581 U.S. 128, 137 S. Ct. 1249, 197 L.Ed. 2d 611 (2017).

The defendant was convicted of the completed or inchoate offense/s listed in Section 4 of this order under RCW 69.50.4013, RCW 69.50.4014, or their predecessor statutes. The prior judgment and sentence includes both offenses rendered void by *Blake* and other offenses not subject to *Blake*.

The court orders:

4. **CLERK'S ACTION: Vacate and Update Criminal Record.** The motion to vacate is granted as to the following counts/crimes under this case number:

Count	Crime	RCW (include subsection)	Date of Crime
1	Possession of controlled substance	69.50.4013(1)	2018-03-14

The Clerk shall update the charge result/charge disposition code to VU (Vacated Unconstitutional) for the vacated count/s.

5. **Other Counts Remain.** The following counts/crimes under this case number are not vacated.

Count	Crime	RCW (include subsection)	Date of Crime
2	Theft in the Third Degree	9A.56.050	2018-03-14

6. **Dismiss.** The charge/s in the information, as originally filed or amended, are dismissed with prejudice as to the counts/crimes listed in Section 4.
7. **Release and Criminal History.** The defendant shall be released from all penalties and disabilities resulting from any vacated count/conviction under this case and those offense/s shall not be included in the defendant's criminal history for purposes of determining a sentence in any subsequent conviction. Other than as modified herein, all other terms and conditions under this cause number shall remain in full force and effect.
8. **Community Custody.** Any term of community custody, community supervision, or community placement with the Department of Corrections (hereinafter referred to as "community custody") previously ordered for the charges listed in paragraph 4 shall no longer remain in place. (*Check one*).

☐ No community custody remains in place in this cause.

☐ Community custody is in place on the remaining charges as follows:

_____ months remains in place on Count/s _____

_____ months remains in place on Count/s _____

_____ months remains in place on Count/s _____

☐ The court has insufficient information about the applicability of community custody on the remaining convictions and reserves on whether community custody applies to those charges.

9. **Firearm and Voting Rights.** The defendant's right to vote and right to possess a firearm are no longer restricted or revoked by the counts/crimes listed in paragraph 4 of this order.
10. **CLERK'S ACTION: Driving Privilege Reinstated.** If the defendant was under 21 years old at the time of conviction, the Clerk shall notify the Department of Licensing to reinstate the defendant's privilege to drive, if suspended due to the vacated counts/crimes in paragraph 4. RCW 69.50.420(2).

Defendant ☐ was ☐ was not under 21 years of age at the time of the conviction.

11. **CLERK'S ACTION: Forward to WSP.** The Clerk shall immediately transmit notice of this order to the Washington State Patrol and to (local law enforcement agency)

Seattle Police Department

which agencies shall immediately update their records to reflect the vacation of the record of the conviction/s.

12. **CLERK'S ACTION: Forward to DOC.** The Clerk shall immediately send a copy of this order to the Washington State Department of Corrections at docamendedorders@doc1.wa.gov.
13. **Disclosure.** The Washington State Patrol shall transmit notice of this order to the Federal Bureau of Investigation. The Washington State Patrol or local law enforcement agency may not disseminate or disclose a conviction that has been vacated to any person, except to other criminal justice agencies per RCW 9.94A.640(4)(a).
14. **Legal Financial Obligations Applied Solely to Counts/Crimes Vacated in Section 4.** All legal financial obligations, fees, fines, costs, charges, or assessments (LFO) resulting solely from the counts/crimes vacated herein, except any separate civil judgment/s not predicated on the vacated counts/crimes, are waived. If the LFO has been assigned to a private collection agency, that assignment is revoked, and the account is removed from that agency for collection. All collection costs resulting solely from the counts/crimes vacated herein are waived, including fees, interest or other monies related to collection. All collection actions resulting solely from the counts/crimes vacated herein are

stopped. All non-restitution interest for this case is waived. If the restitution and restitution interest were assessed on the counts/crimes vacated herein, the balances shall be waived. Any other legal financial obligations assessed on this case number arising from the remaining unvacated counts/crimes in Section 5 shall remain imposed, to include misdemeanor offenses in separate judgment.

- 15. CLERK'S ACTION: Waive Balances, and Stop Collection and Collection Actions, Applied Solely to Counts/Crimes Vacated in Section 4.** The Clerk shall delete, strike, cancel, or waive any unpaid balance on any LFO ordered solely due to the vacated counts/crimes described in Section 4, including any interest. If the Clerk has assigned any LFO ordered solely due to the counts/crimes vacated in Section 4 to a private collection agency, the Clerk shall remove the LFO from collection and waive collection costs, including fees, interest, and other monies related to collection. The Clerk shall stop any associated collection actions resulting solely from the counts/crimes vacated in Section 4. The Clerk shall waive all non-restitution interest for vacated and remaining charges. The Clerk shall waive any restitution and restitution interest assessed on the vacated drug possession offense/s described in Section 4 of this order.
- 16. CLERK'S ACTION: Refund.** To the extent payment was received on an LFO described in Sections 14 and 15, the payment shall be refunded to the defendant, and no portion of the refund will be reallocated to other cause numbers. This shall not apply to garnishment orders for child support. The Clerk shall calculate the refundable LFO amount. Refundable LFO amounts shall include any amounts listed in the judgment and sentence or subsequent restitution orders resulting solely from the conviction/s vacated in Section 4, and may include, but are not limited to: court costs, fees, fines, victim restitution, and interest if paid on a vacated offense, as well as additional fees, interest, or any other monies associated with the conviction/s vacated in Section 4 that the defendant paid to a private collection agency, which were not remitted to the court.
- (Check one)*

- ☐ As determined by the Clerk, no LFO amounts were paid on the vacated counts/crimes.
- ☐ As determined by the Clerk, the following LFOs were paid on the vacated counts/crimes in the following amounts (check all that apply)
 - ☐ Crime Lab Fee: \$_____

- ☐ DNA Collection Fee: \$_____
- ☐ Drug Fund: \$_____
- ☐ Interest on non-restitution LFOs: \$_____
- ☐ Restitution
- ☐ Restitution interest: \$_____
- ☐ Other: \$_____
- ☐ The amounts paid toward non-restitution LFOs on the vacated counts/crimes, and restitution paid on the vacated counts/crimes, will be determined by the Clerk and any refund owing to the defendant will be calculated by the Clerk following entry of this order.
- ☐ As determined by the Clerk, no records are available to use in calculating a refundable LFO amount. The defendant may seek assistance of counsel for a determination of refund.

CLERK'S ACTION: The Clerk shall provide notice of this order and certified refund amount to the agency that processes Blake LFO refunds. The Clerk will make every effort to certify a refund amount to the agency that processes Blake LFO refund amounts no later than 60 days from entry of this order.

The defendant shall be refunded as ordered above. The defendant may dispute the refund amount by filing a motion for appointment of counsel and determination of refund.

- 17. Resentencing.** Entry of this order is only specifically with respect to vacating the Blake-affected conviction/s. The defendant may subsequently pursue re-sentencing for the remaining count/s under this cause number if eligible.

The above is hereby ordered.

Date

▶ _____
Judge/Print Name:

▶ _____
Dep. Prosecuting Attorney WSBA No.

▶ _____
Defendant or Defense Attorney signature

Print Name

Alexandria Lee Montgomery Example

Print Name

Defendant's Mailing Address, if known:

9876 Synthetic Long Residence Avenue

Seattle, WA 98101

Phone: 206-555-0142

Email: participant@example.test

Superior/District Court of Washington, County of King
Municipal Court of the City of _____

State of Washington/City of _____,
Plaintiff,

vs.

Alexandria Lee Montgomery Example 1991-04-17
Defendant DOB

No. SYNTH-20-1-004321-1

Note for Calendar re: Blake Motion to Vacate
Drug Possession Conviction and Refund
Paid LFO Amounts

☒ Clerk's action required: 1

Notice of Hearing

To the Court Clerk and the Prosecuting Attorney for County/City of King:

1. I request that a court hearing on Defendant's **Blake Motion** to Vacate Drug Possession Conviction and Refund Paid LFO Amounts be considered at the following date, time, and location:



for: _____ at: _____ ☐ a.m. ☐ p.m.
date time

at: King
name of county or city of the court

- ☒ County Superior Court
☐ County District Court
☐ City Municipal Court

Judge or Docket/Calendar: _____

Court Address: _____

2. I request (check one):

☒ The Court rule on Defendant's motion without Defendant's appearance.

☐ To appear at the calendar (check one): ☐ in person ☐ by phone/video, if available

I understand that if I request to appear and then do not appear that the Court may continue my case or rule on the motion in my absence.

Dated this _____ day of _____, 20_____.



Person asking for this hearing signs here

Alexandria Lee Montgomery Example

Print name (if lawyer, also list WSBA #)

I agree to accept legal papers for this case at:

9876 Synthetic Long Residence Avenue

address

Seattle

WA

98101

city

state

zip

participant@example.test

email (optional)

This does **not** have to be your home address. If this address changes before the case ends, you **must** notify all parties and the court clerk in writing.

Superior/District Court of Washington, County of King
Municipal Court of the City of _____

State of Washington/City of _____,
Plaintiff,

vs.

Alexandria Lee Montgomery Example 1991-04-17
Defendant DOB

No. SYNTH-20-1-004321-1

Proof of Service – Blake Motion and Notice
of Hearing

Proof of Service

I declare that on date: _____ at time: _____ a.m./p.m.

I served the following documents:

☒ Blake Motion to Vacate Record of Drug Possession Conviction and Refund Paid LFO
Amounts

☒ Calendar Note re Motion to Vacate Drug Possession Conviction

to the Office of the Prosecutor of _____ County/City

at this address: _____

by this method:

☐ hand-delivery; OR

☐ regular mail, first class postage prepaid; OR

☐ certified mail, first class postage prepaid, return receipt requested

In accordance with Chapter 9A.72 RCW and GR 13, I declare under penalty of perjury under
the laws of the state of Washington that the statements on this form are true.

Signed at (city and state): _____ Date: _____

Signature of server

Printed name of server

Washington Blake filing guide

Your selected court and scope

File in the Superior Court that sentenced you in King. Cause SYNTH-20-1-004321-1. The packet requests partial relief: non-Blake counts remain. Verify the court record before selecting the motion and matching order. District and municipal courts use Blake-002 with Blake-005 (full) or Blake-006 (partial); superior court uses Blake-001 with Blake-007 (full) or Blake-008 (partial). Do not mix court levels.

This relief concerns an unconstitutional possession conviction under State v. Blake and State v. A.L.R.H.; no clean-record or waiting-period requirement is imported. Possession with intent or delivery is outside this route. A treatment-program route is a separate question; completing treatment is not a Blake prerequisite.

Records to obtain and compare before filing

Obtain your Washington State Patrol criminal-history record and the sentencing-court docket. Start with the WSP WATCH name/date-of-birth conviction check and consult the current WSP fee table before paying; a non-conviction record uses a separate fingerprint/inspection process. Ask the sentencing-court clerk for the docket, judgment and sentence, exact statutory subsection, count numbers, offense class, sentencing, release and supervision dates. Compare every supplied conviction and remaining count to those records. If court level, statutory coverage or full/partial scope is unclear, stop and obtain legal help.

Obtain the complete payment history from the clerk or the collection agency for this cause number. Use it to verify LFO payments and balances. The court or clerk determines refund eligibility and calculates the amount and interest; participant estimates in the attached schedule are not a court finding. Keep originals and permanent copies. Attach a true court payment-history printout if available; never invent an official accounting attachment.

Prepare and file

Review the motion and its attached conviction/payment schedule. Complete actual signature and execution steps personally where required; the pattern forms do not require notarization. Printed participant names and known mailing information are supplied. Leave judge/prosecutor signatures, court decisions, actual notice findings, refund amounts, remaining supervision orders and dates to their owners. Known count tables in the proposed partial order are proposed factual entries for court review.

Ask the sentencing-court clerk about local supplemental forms, filing method, required copies, service and whether a hearing is necessary. No fixed court filing fee is quoted here because local fees were not established; confirm any charge before filing. The requested waiver of outstanding LFOs is part of Blake relief, not a separate indigency form.

Hearing and service

Blake-003 is included because you requested a hearing. Confirm its date, time, calendar, place and permitted appearance method with the clerk before filing or service. Unconfirmed hearing details are blank for later completion. Your requested appearance choice is marked; actual signature and execution date remain blank.

Serve the prosecutor for the sentencing court and file truthful proof of service. Blake-004 is a blank certificate for the actual server: actual date, time, delivery method, delivery address, server identity and signature must reflect what occurred. Its issuer-printed document list mentions the motion and calendar note. If no notice was served, do not sign a certificate saying it was; ask the clerk for the accepted correction to that document list. No service is performed or certified by generation.

Refund and follow-through

The selected motion seeks vacation, refund of LFOs and accrued interest paid on unconstitutional convictions, waiver of remaining related LFO balances, and removal of related collection assignments. The court decides all amounts and eligibility. For a partial case, amounts and obligations attributable to remaining counts require court treatment; do not assume the whole case balance disappears.

After the signed vacation order and refund-eligibility determination, use the Washington Courts Blake Refund Bureau official online portal or its official mail process. Confirm the current instructions with the Bureau or clerk. Blake-002 is the CLJ motion, not a separate refund application. Retain the signed order, payment history and proof of any payment. Do not seek a duplicate refund; disputes about a prior refund or collection history need assistance. Confirm clerk transmission to WSP and relevant agencies, then compare updated records.

Washington Blake filing guide

Limits and when to stop

Any pending charge in Washington, another state, federal court, or tribal court.

Any domestic violence element, charged or findable from the court file.

Any protection, no-contact, antiharassment or civil restraining order currently in effect, or violated in the last five years.

Any DUI, physical control, or alcohol or drug related driving offence, including a reduced charge.

Any firearm, deadly weapon or sexual motivation enhancement.

Any question about offence class or the exact RCW.

Immigration consequences.

Any participant whose real goal is firearm rights restoration, which is a separate proceeding under RCW 9.41.041.

The conviction may not be simple possession, since possession with intent and delivery are outside Blake.

The case included other charges and it is unclear whether a full or partial vacatur is right.

The participant is chasing a refund from a court that has already refunded it, or through a collections agency that disputes the payment history.

Vacation does not seal the court file or remove public indexes and does not restore firearm rights. The exact Blake pattern orders address the consequences of the unconstitutional convictions; do not apply ordinary-vacation recidivist language to override these orders. Obtain legal advice about other remaining convictions or later proceedings.

Synthetic review fixtures are not for filing.